

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

USDC SDNY
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DOC# _____
DATE FILED: 7/30/15

Donovan Johnson,

Plaintiff,

**STIPULATION AND
ORDER OF DISMISSAL**

-against-

14 CV 7598 (JGK)

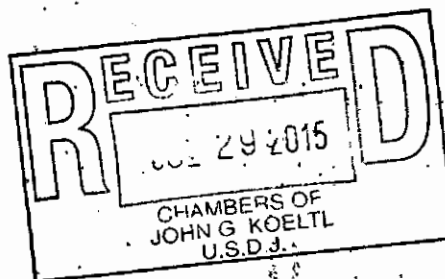
The City of New York, Police Officer Kevin Kavanagh, Police
Officer Miriam Lasso, Police Officer Alex Lugo, Police
Officer Ruben Santos, Joseph Helgerson, and Police Officer
Edwin Vega, Police Officer John/Jane Doe(s)#s 1-8, 14 CV
7598 (JGK),

Defendants.

WHEREAS, the parties have reached a settlement agreement and now desire to
resolve the remaining issues raised in this litigation, without further proceedings and without
admitting any fault or liability;

NOW, THEREFORE, IT IS HEREBY STIPULATED AND AGREED, by
and between the undersigned, that

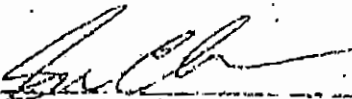
1. The above-referenced action is hereby dismissed with prejudice; and



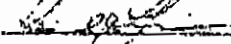
2. Notwithstanding the dismissal of this action in accordance with this agreement, the District Court shall continue to maintain jurisdiction over this action for the purpose of enforcing the terms of the settlement agreement reached between the parties and set forth in the Stipulation of Settlement executed by the parties in this matter.

Dated: New York, New York
March 3, 2015

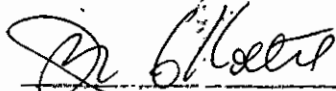
STECKLOW COHEN & THOMPSON
Attorneys for Plaintiff
 217 Centre Street - Floor 6
 New York, New York 10013
 212 566-8000

By: 
 Samuel B. Cohen
Attorney for Plaintiff

ZACHARY W. CARTER
 Corporation Counsel of the
 City of New York
*Attorney for Defendants City, Kavanagh,
 Lasso, Lugo, Santos, Vega and Hilgerson*
 100 Church Street, 3rd Floor
 New York, New York 10007

By: 
 Pernell M. Telfort
Assistant Corporation Counsel

SO ORDERED:


 HON. JOHN G. KOELTL
 UNITED STATES DISTRICT JUDGE

Dated: 7/30, 2015

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

Donovan Johnson,

Plaintiff,

STIPULATION OF
SETTLEMENT

-against-

14 CV 7598 (JGK)

The City of New York, Police Officer Kevin Kavanagh,
Police Officer Miriam Lasso, Police Officer Alex Lugo,
Police Officer Ruben Santos, Joseph Helgerson, and Police
Officer Edwin Vega, Police Officer John/Jane Doe(s)#s 1-8,
14 CV 7598 (JGK),

Defendants.

WHEREAS, plaintiff commenced this action by filing a complaint on or about September 18, 2014, alleging that the defendants violated plaintiff's federal civil and state common law rights; and

WHEREAS, defendants City, Officer Kevin Kavanagh, Officer Miriam Lasso, Officer Alex Lugo, Ruben Santos, Officer Edwin Vega and Officer Joseph Hilgerson have denied any and all liability arising out of plaintiff's allegations; and

WHEREAS, the parties now desire to resolve the issues raised in this litigation, without further proceedings and without admitting any fault or liability; and

WHEREAS, plaintiff has authorized his counsel to settle this matter on the terms set forth below;

NOW, THEREFORE, IT IS HEREBY STIPULATED AND AGREED, by and between the undersigned, as follows:

1 The above-referenced action is hereby dismissed against defendants, with prejudice, and without costs, expenses, or attorneys' fees except as specified in paragraph "2" below.

2. Defendant City of New York hereby agrees to pay plaintiff Donovan Johnson the sum of Ten Thousand (\$10,000.00) Dollars in full satisfaction of all claims, including claims for costs, expenses and attorneys' fees. In consideration for the payment of this sum, plaintiff agrees to dismissal of all the claims against the defendants and to release defendants City, Officer Kavanagh, Officer Lasso, Officer Lugo, Santos, Officer Vega and Officer Hilgerson; their successors or assigns; or any entity represented by the Office of the Corporation Counsel, from any and all liability, claims, or rights of action alleging a violation of plaintiff's civil rights and any and all related state law claims, from the beginning of the world to the date of the General Release, including claims for costs, expenses, and attorneys' fees.

3. Plaintiff shall execute and deliver to defendant City of New York's attorney all documents necessary to effect this settlement, including, without limitation, a General Release based on the terms of paragraph 2 above and an Affidavit of Status of Liens. Prior to tendering the requisite documents to effect this settlement, Medicare-recipient plaintiffs must obtain and submit a final demand letter from Medicare for the reimbursement of any conditional payments made by Medicare for any injury or condition that is the subject of this lawsuit. A Medicare Set-Aside Trust may also be required if future anticipated medical costs are found to be necessary pursuant to 42 U.S.C. § 1395y(b) and 42 C.F.R. §§ 411.22 through 411.26.

4. Nothing contained herein shall be deemed to be an admission by the defendants that they have in any manner or way violated plaintiff's rights, or the rights of any other person or entity, as defined in the constitutions, statutes, ordinances, rules or regulations of

the United States, the State of New York, or the City of New York or any other rules or regulations of any department or subdivision of the City of New York. This stipulation shall not be admissible in, nor is it related to, any other litigation or settlement negotiations, except to enforce the terms of this agreement.

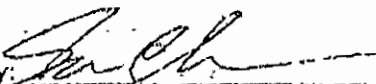
5. Nothing contained herein shall be deemed to constitute a policy or practice of the City of New York or any agency thereof.

6. Plaintiff agrees to hold harmless defendants regarding any liens or past and/or future Medicare payments, presently known or unknown, in connection with this matter. If conditional and/or future anticipated Medicare payments have not been satisfied, defendants reserve the right to issue a multiparty settlement check naming Medicare as a payee or to issue a check to Medicare directly based upon Medicare's final demand letter.

7. This Stipulation of Settlement contains all the terms and conditions agreed upon by the parties hereto, and no oral agreement entered into at any time nor any written agreement entered into prior to the execution of this Stipulation of Settlement regarding the subject matter of the instant proceeding shall be deemed to exist, or to bind the parties hereto, or to vary the terms and conditions contained herein.

Dated: New York, New York
March 3, 2015

STECKLOW COHEN & THOMPSON
Attorneys for Plaintiff
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 212 566-8000

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